25901147 **A**

Reg.No : .....

Name : .....

MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION March 2026

Fourth SEMESTER

Discipline Specific Core Course (DSC) - MG4DSCBLW200 - BUSINESS AND TAXATIONS LAWS

(2024 ADMISSION ONWARDS)

Duration: 1 Hour 15 minutes **Maximum Marks: 70**

Remember(K), Understand(U), Apply(A), Analyse(An), Evaluate(E), Create(C), Skill(S), Interest(I) and Appreciation(Ap)

Students should attempt at least one question from each course outcome to enhance their overall outcome attainability.

Part A

MCQ Questions

Answer any **20** questions

Each question carries **1** marks

1. A consumer suffered damage because the product deviated from manufacturing specifications even though the design was safe. Liability arises due to: [U] / [CO2]

   a). Design defect only b). Manufacturing defect/deviation

   c). Consumer misuse d). Advertisement defect

2. Limiting production to raise prices is a form of: [U] / [CO1]

   a). Product differentiation b). Sales promotion

   c). Restrictive trade practice d). Competitive strategy

3. Copyright for a computer programme is categorized under which type of work? [U] / [CO3]

   a). Artistic Work b). Literary Work

c). Musical Work d). None of the other options

4. GST promotes the concept of: [U] / [CO4]

a). Multiple taxation b). Tax on production

c). One Nation, One Tax d). Tax on exports

5. Which authority monitors and penalizes misleading advertisements in India under the 2019 Act ? [U] / [CO1]

a). TRAI b). FSSAI

c). CCPA d). SEBI

6. Which of the following in not included in the definition of “Harm” under product liability provisions ? [U] / [CO1]

a). Mental agony due to defective product b). Property damage

c). Personal injury d). Dissatisfaction without damage

7. Who can file a complaint before the District Consumer Disputes Redressal Commission? [U] / [CO2]

a). A consumer b). Legal heir

c). A voluntary consumer organisation or the Government d). All of the other options

8. Which of the following is a civil remedy available for patent infringement? [U] / [CO3]

a). Imprisonment b). Injunction

c). Cancellation of citizenship d). Winding up of the company

9. ITC can be claimed on which of the following business-related categories? [U] / [CO4]

a). Only raw materials (inputs). b). Only capital goods.

c). Inputs, input services, and capital goods. d). Only services used in manufacturing.

10. Filing fee for complaints above ₹1 crore and up to ₹2 crore before the State Commission is: [U] / [CO2]

a). ₹2,000 b). ₹2,500

c). ₹3,000 d). ₹4,000

11. Which of the following best describes a spurious service? [U] / [CO1]

a). A service provided free of cost b). A service that appears legitimate but is actually fraudulent

c). A service available only online d). A government-approved emergency service

12. Product service provider is generally NOT liable when: [U] / [CO2]

a). Service defect exists b). Negligent servicing occurs

c). Seller sells expired product d). Fake service promise made

13. Where must an application for a Trade Mark be filed in India? [U] / [CO3]

a). The Local Police Station b). The Trade Marks Registry

c). The Income Tax Office d). The District Court

14. What is the role of the GST Council in the Indian GST system? [U] / [CO4]

a). Managing tax collection b). Enforcing laws directly

c). Making recommendations on GST related matters d). Managing IT systems

15. Which of the following is considered the most crucial step in the patent process, involving the preparation of a techno-legal document? [U] / [CO3]

a). Patentability Search b). Patent Drafting

c). Publication d). None of the other options

16. The vendor may be held accountable if a product's defect results in harm even if: [U] / [CO1]

a). The vendor gave the customer a clear warning b). The seller did not participate in the production process

c). The seller was unaware of the defect d). The goods was not sold directly by the seller.

17. Which of the following must be provided to a consumer who files a complaint by the grievance officer of the inventory e-commerce entity? [U] / [CO2]

a). A discount voucher b). A personal phone call from the CEO

c). A ticket number for tracking status

d). A physical letter of apology

18. The "Right of Paternity" falls under which category of rights of a Copyright owner? [U] / [CO3]

a). Economic Rights.

b). Commercial Rights.

c). Moral Rights.

d). None of the other options.

19. The statement that correctly reflects the scope of “goods” in relation to the taxable event under the Customs Act is: [U] / [CO4]

a). Only movable physical items are considered goods

b). Goods include all articles capable of being imported or exported and subject to duty

c). Services embedded in goods are always excluded

d). Goods are taxable only when they enter the customs area

20. What is the full form of RCM under GST? [U] / [CO4]

a). Reverse Credit Mechanism

b). Revenue Collection Method

c). Reverse Charge Mechanism

d). Registered Consumer method

21. Which one of the following statements is true? [U] / [CO1]

a). Product liability was first introduced in the 1986 Act.

b). CPA, 2019 does not deal with misleading advertisements.

c). Consumers can file complaints electronically under CPA, 2019.

d). The Act applies only to government companies.

22. A "Product Patent" gives the owner a monopoly over: [U] / [CO3]

a). Only the specific method of making the product

b). The actual product, regardless of the process used to make it

c). The brand name of the product

d). None of the other options

[1x20 = 20]

Part B

MCQ Questions

Answer any **25** questions

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23. Which of the following best describes the need for prohibition of unfair trade practices? [U] / [CO1]

a). They encourage honest competition among businesses

b). They mislead consumers and disturb the fairness of the market

c). They increase production and reduce costs

d). They promote innovation and product development

24. Consider the following statements and state which of the statements are true. Statement (1): A casual taxable person has no fixed place of business in the State of supply. Statement (2):Casual taxable persons are entitled to threshold exemption. Statement (3): Casual taxable persons are required to take compulsory registration. Statement (4): Casual taxable persons make occasional transactions. [U] / [CO4]

a). (1), (3) and (4) only

b). (1) and (4) only

c). (2), (3) and (4) only

d). (1), (2), (3) and (4)

25. Identify the INCORRECT statement about HSN: [U] / [CO4]

a). It is used to classify goods.

b). It contains over 5,000 commodity groups.

c). It is used for calculating income tax.

d). It is a 6-digit code at the international level.

26. Consider the following statements,Choose the most appropriate alternative: Statement I: The Consumer Protection Act, 1986 provided for a three-tier redressal mechanism at District, State, and National levels. Statement II: The Consumer Protection Act, 2019 retained the three-tier redressal mechanism. [U] / [CO1]

a). Both statements are true.

b). Statement I is true, and Statement II is false.

c). Statement I is false, and Statement II is true.

d). Both statements are false.

27. Consider the following statements and state which of the statements are true. A consumer purchased machinery worth ₹3 crore and filed complaint for manufacturing defect. Statement (1): National Consumer Disputes Redressal Commission has original jurisdiction. Statement (2): State Commission has pecuniary jurisdiction. Statement (3): Pecuniary jurisdiction depends on value of consideration. Statement (4): District Commission will hear this complaint. Which of the above statements are correct? [U] / [CO2]

a). (1) and (3) only

b). (1), (2) and (3) only

c). (2), (3) and (4) only

d). (1), (2), (3) and (4)

28. Consider the following statements Assertion (A)and Reasoning (R). Choose the correct alternative. [U] / [CO3]
Assertion (A): Use of an identical mark for identical goods constitutes infringement.
Reason (R): In such cases, proof of actual confusion is not necessary if likelihood of confusion exists.

a). Both A and R are true and R is the correct explanation of A
b). Both A and R are true but R is not the correct explanation of A
c). A is true but R is false
d). A is false but R is true

29. Consider the following statements and choose the most appropriate alternative: [U] / [CO4]
Statement I: Import of services for a consideration is a supply, whether or not in the course of business.
Statement II: Import of services from a related person for business purposes is a supply even without consideration.

a). Both Statement I and Statement II are true.
b). Statement I is true, but Statement II is false.
c). Statement I is false, but Statement II is true.
d). Both Statement I and Statement II are false.

30. Consider the following statements and choose the most appropriate alternative. [U] / [CO4]
Statement
I: As per GST Act, turnover refers to the aggregate value of all taxable supplies made by a person. Statement
II: Turnover under GST includes the value of inward supplies.

a). Both statements are true
b). Statement I is true, and Statement II is false
c). Statement I is false, and Statement II is true
d). Both statements are false

31. If a consumer files a product liability case before a consumer forum, the forum may award which of the following? [U] / [CO1]

a). Only a warning to the manufacturer
b). Compensation for loss, and sometimes punitive damages depending on the law
c). Only a discount coupon
d). Only free products in the future

32. What is the residency requirement for the "Nodal Person of Contact" appointed by an e-commerce entity? [U] / [CO2]

a). Must be a resident of the USA
b). Must be a resident of India
c). Can be a resident of any country
d). Must be a resident of the state where the platform is registered

33. Regarding the term of copyright for anonymous works, consider the following statements. Assertion (A) and Reasoning (R). Choose the correct alternative: [U] / [CO3]

Assertion (A): The copyright lasts for 60 years from the start of the year following publication.
Reasoning (R): If the author's identity is disclosed, the term reverts to the life of the author plus 60 years.

a). Both A and R are true, and R is the correct explanation of A.
b). Both A and R are true, but R is not the correct explanation of A.
c). A is true, but R is false.
d). A is false, but R is true.

34. Consider the following statements Assertion (A)and Reasoning (R). Choose the correct alternative: [U] / [CO4]
Assertion (A): Tax paid on the import of goods is considered Input Tax.
Reasoning (R): Section 2(62) specifically includes integrated tax charged on the import of goods within the definition of input tax.

a). A is true, but R is false
b). A is false, but R is true.
c). Both A and R are true, and R is the correct explanation of A.
d). Both A and R are true, and R is not the correct explanation of A.

35. In the context of consumer grievance, what must the marketplace provide to allow tracking? [U] / [CO2]

a). A phone number of the CEO.
b). A ticket number for each complaint lodged.
c). The seller's home address.
d). A discount voucher for the next purchase.

36. Which of the following is NOT explicitly recognized as a Consumer Right Under the Consumer Protection Act,2019? [U] / [CO1]

a). Right to Safety
b). Right to Information
c). Right to Bargain
d). Right to Seek Redressal

37. What is the mandatory financial condition for an appellant to have their appeal entertained by the State Commission if the District Commission ordered them to pay a specific amount? [U] / [CO2]

a). Deposit 100% of the ordered amount

b). Deposit fifty per cent (50%) of the amount or ₹25,000, whichever is less

c). Deposit fifty per cent (50%) of the amount or ₹25,000, whichever is more

d). Provide a written guarantee from a bank for the full amount

38. Case: A bakery seeks registration of the word “BREAD” for bread products. [U] / [CO3]
Assertion (A): The mark is not registrable.
Reason (R): Generic terms cannot function as trademarks because they do not distinguish goods of one trader from another.

a). Both A and R are true and R is the correct explanation of A

b). Both A and R are true but R is not the correct explanation of A

c). A is true but R is false

d). A is false but R is true

39. An importer brings a consignment of electronic components into India and stores them in a customs bonded warehouse. Before the goods are cleared for home consumption, the government issues a notification increasing the rate of customs duty. The importer clears the goods after this change in rate. Which rate of customs duty is applicable in this case? [U] / [CO4]

a). Rate applicable on date of shipment from foreign country

b). Rate applicable when the goods were deposited in the bonded warehouse

c). Rate applicable when the goods are cleared from the bonded warehouse

d). Rate applicable when the Bill of Entry was originally filed

40. Consider the following statements Assertion (A) and Reasoning (R). Choose the correct alternative. [U] / [CO3]
Assertion (A): Account of profits is often chosen when the infringer’s earnings from the violation exceed the owner’s actual losses.
Reasoning (R): This remedy requires the infringer to surrender all profits made by exploiting the copyrighted work to the owner.

a). Both A and R are true, and R is the correct explanation of A.

b). Both A and R are true, but R is not the correct explanation of A.

c). A is true, but R is false.

d). A is false, but R is true.

41. Consider the following statements and state which of the statements are correct. [U] / [CO3]
Statement 1: In India, a Geographical Indication is registered for a period of 10 years and can be renewed from time to time.

Statement 2: Once a product gets a GI tag, it becomes the private property of a single individual who can sell the rights to anyone.

a). Only Statement 1 is correct
b). Only Statement 2 is correct
c). Both Statement 1 and Statement 2 are correct
d). Neither Statement 1 nor Statement 2 is correct

42. A mediator's role is primarily to act as a: [U] / [CO2]

a). Judge who imposes a decision on the parties.
b). Lawyer who fights for the consumer's rights only.
c). Neutral third party who facilitates communication and negotiation.
d). Witness who testifies against the manufacturer in court.

43. A generic name can be registered as a GI if: [U] / [CO3]

a). It has been used for 50 years
b). It indicates specific geographical origin and qualities
c). It is famous worldwide
d). It is advertised heavily

44. Read the following statements and choose the correct option: [U] / [CO4]

I. Territorial waters relate to political sovereignty of the State.
II. Customs waters relate to fiscal control and enforcement of customs law.
III. Territorial waters and customs waters serve different legal purposes.
IV. Customs waters help in prevention of smuggling and control of import and export of goods.

a). I and II only
b). I, II and III only
c). I, II, III and IV
d). II and IV only

45. Identify the INCORRECT statement regarding Transaction Value: [U] / [CO4]

a). It is the price actually paid or payable for the supply.
b). It applies only if the supplier and recipient are related.
c). It includes amounts the supplier is liable to pay but are incurred by the recipient.
d). Most cases of regular trade use the invoice value as the taxable value.

46. Which of the following statements about “Deficiency” under the Consumer Protection Act, 2019 is are correct? [U] / [CO1]

1. Deficiency covers shortcomings in the quality, nature, or manner of performance of service.
2. A delay in service without a valid reason can amount to deficiency.

3. Deficiency applies only to goods, not services.
4. A service performed according to law and contract cannot be considered deficient.

a). 1 and 2 only
b). 1, 2 and 4 only
c). 2 and 3 only
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47. Consider the following statements [U] / [CO2]
(1)The Central Consumer Protection Authority may issue directions to discontinue a false or misleading advertisement but cannot modify it.
(2)The penalty for a false or misleading advertisement may extend up to ₹10 lakh for the first contravention and ₹50 lakh for every subsequent contravention.
(3)The CCPA may prohibit the endorser from making any endorsement for a period which may extend up to three years for the first contravention. Which of the statements given above are correct?

a). 2 only
b). 1 and 2 only
c). 2 and 3 only
d). 1, 2 and 3

48. Consider the following statements and state which of the statements are true regarding the significance of IPR: [U] / [CO3]
(1) IPR helps in branding, reputation, and building consumer trust.
(2) IPR provides revenue generation through licensing and franchising.
(3) IPR attracts funding and investors as it signals innovation and growth potential.
(4) IPR protection is limited only to the IT and pharmaceutical industries.

a). (1) and (2) only
b). (1), (2) and (3) only
c). (2), (3) and (4) only
d). (1), (2), (3) and (4)

49. Consider the following statements, Assertion (A) and Reasoning (R). Choose the correct alternative. [U] / [CO4]
Assertion (A): CGST and SGST are levied on intra-state supply of goods and services.
Reason (R): In intra-state supply, tax revenue is shared between the Centre and the State.

a). Both A and R are true, and R is the correct explanation of A
b). Both A and R are true, but R is not the correct explanation of A
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[2x25 = 50]

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37. Consider the following statements and state which of the statements are correct. [U] / [CO3]
Statement 1: In India, a Geographical Indication is registered for a period of 10 years and can be renewed from time to time.
Statement 2: Once a product gets a GI tag, it becomes the private property of a single individual who can sell the rights to anyone.

a). Only Statement 1 is correct

b). Only Statement 2 is correct

c). Both Statement 1 and Statement 2 are correct

d). Neither Statement 1 nor Statement 2 is correct

38. What is the mandatory financial condition for an appellant to have their appeal entertained by the State Commission if the District Commission ordered them to pay a specific amount? [U] / [CO2]

a). Deposit 100% of the ordered amount

b). Deposit fifty per cent (50%) of the amount or ₹25,000, whichever is less

c). Deposit fifty per cent (50%) of the amount or ₹25,000, whichever is more

d). Provide a written guarantee from a bank for the full amount

39. A mediator's role is primarily to act as a: [U] / [CO2]

a). Judge who imposes a decision on the parties.

b). Lawyer who fights for the consumer's rights only.

c). Neutral third party who facilitates communication and negotiation.

d). Witness who testifies against the manufacturer in court.

40. Consider the following statements Assertion (A)and Reasoning (R). Choose the correct alternative: [U] / [CO4]
Assertion (A): Tax paid on the import of goods is considered Input Tax.
Reasoning (R): Section 2(62) specifically includes integrated tax charged on the import of goods within the definition of input tax.

a). A is true, but R is false

b). A is false, but R is true.

c). Both A and R are true, and R is the correct explanation of A.

d). Both A and R are true, and R is not the correct explanation of A.

41. Identify the INCORRECT statement about HSN: [U] / [CO4]

a). It is used to classify goods.

b). It contains over 5,000 commodity groups.

c). It is used for calculating income tax.

d). It is a 6-digit code at the international level.

42. Consider the following statements, Assertion (A) and Reasoning (R). Choose the correct alternative. [U] / [CO4]
Assertion (A): CGST and SGST are levied on intra-state supply of goods and services. Reason (R): In intra-state supply, tax revenue is shared between the Centre and the State.

a). Both A and R are true, and R is the correct explanation of A

b). Both A and R are true, but R is not the correct explanation of A

c). A is true, but R is false

d). A is false, but R is true

43. Consider the following statements and choose the most appropriate alternative: [U] / [CO4]
Statement I: Import of services for a consideration is a supply, whether or not in the course of business.
Statement II: Import of services from a related person for business purposes is a supply even without consideration.

a). Both Statement I and Statement II are true.

b). Statement I is true, but Statement II is false.

c). Statement I is false, but Statement II is true.

d). Both Statement I and Statement II are false.

44. An importer brings a consignment of electronic components into India and stores them in a customs bonded warehouse. Before the goods are cleared for home consumption, the government issues a notification increasing the rate of customs duty. The importer clears the goods after this change in rate. Which rate of customs duty is applicable in this case? [U] / [CO4]

a). Rate applicable on date of shipment from foreign country

b). Rate applicable when the goods were deposited in the bonded warehouse

c). Rate applicable when the goods are cleared from the bonded warehouse

d). Rate applicable when the Bill of Entry was originally filed

45. Which of the following best describes the need for prohibition of unfair trade practices? [U] / [CO1]

a). They encourage honest competition among businesses

b). They mislead consumers and disturb the fairness of the market

c). They increase production and reduce costs

d). They promote innovation and product development

46. Consider the following statements and choose the most appropriate alternative. [U] / [CO4]
Statement I: As per GST Act, turnover refers to the aggregate value of all taxable supplies made by a person.
Statement II: Turnover under GST includes the value of inward supplies.

a). Both statements are true

b). Statement I is true, and Statement II is false

c). Statement I is false, and Statement II is true

d). Both statements are false

47. Consider the following statements and state which of the statements are true regarding the significance of IPR: [U] / [CO3]
(1) IPR helps in branding, reputation, and building consumer trust.
(2) IPR provides revenue generation through licensing and franchising.
(3) IPR attracts funding and investors as it signals innovation and growth potential.
(4) IPR protection is limited only to the IT and pharmaceutical industries.

a). (1) and (2) only

b). (1), (2) and (3) only

c). (2), (3) and (4) only

d). (1), (2), (3) and (4)

48. Regarding the term of copyright for anonymous works, consider the following statements. Assertion (A) and Reasoning (R). Choose the correct alternative: [U] / [CO3]
Assertion (A): The copyright lasts for 60 years from the start of the year following publication.
Reasoning (R): If the author's identity is disclosed, the term reverts to the life of the author plus 60 years.

a). Both A and R are true, and R is the correct explanation of A.

b). Both A and R are true, but R is not the correct explanation of A.

c). A is true, but R is false.

d). A is false, but R is true.

49. What is the residency requirement for the "Nodal Person of Contact" appointed by an e-commerce entity? [U] / [CO2]

a). Must be a resident of the USA

b). Must be a resident of India

c). Can be a resident of any country

d). Must be a resident of the state where the platform is registered

[2x25 = 50]